

24STCV18663 24STCV18663

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Case Number: 24STCV18663 Hearing Date: August 6, 2026 Dept: 510

No.

10 - Caroline Lipe v. J. Frank Associates, LLC, et al.

Defendants

J. Frank Associates, LLC and Eric Brielmann's Motion to Compel Further Responses to Requests for Production

Defendants

J. Frank Associates, LLC and Eric Brielmann move to compel Plaintiff Caroline Lipe to serve further responses to requests for production, set two, request nos. 95-125. After Defendants filed this motion, Plaintiff served supplemental responses to some of the requests. In reply, Defendants identify request nos. 95, 97-105, 107, 109-112, and 123 as the outstanding, disputed requests. (See Reply, at p. 10.)

A requesting party may move to compel further responses if “[a] statement of compliance with the demand is incomplete,” “[a] representation of inability to comply is inadequate, incomplete, or evasive,” or “[a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310(a).)

Supplemental Responses

Plaintiff served supplemental responses to request nos. 96, 106, 108, 113-122, and 124-125. The Court finds that the supplemental responses to nos. 96, 108, 114, 116 are code-compliant.

Plaintiff makes incomplete statements

of compliance in response to request nos. 106, 113, 115, 124, and 125. For example, after objecting to request no. 124, Plaintiff responds: "Subject to and without waiving the foregoing objections, Plaintiff will comply with this request in part and produce documents reflecting her earnings from work since her termination from Defendants. See documents bates stamped LIPE 000451-LIPE 000456." Code of Civil Procedure section 2031.220 provides, "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." These responses do not identify any documents withheld subject to objections as required. (Code Civ. Proc., § 2031.240(b)(1).)

Plaintiff's responses to request nos.

117-122 are evasive. These requests seek all nonprivileged communications between Plaintiff and other named individuals. In response, Plaintiff states that she does not have access to her work emails or Slack messages, but cites some documents included in a document production. This is non-responsive; the request seeks all communications, including through work and non-work-related channels. To the extent her statement referencing documents by Bates number operates as a partial statement of compliance, it does not identify what documents are being withheld based on objections, as required.

Repetitive

Requests

Courts may restrict discovery that "is

unreasonably cumulative or duplicative." (Code Civ. Proc., § 2019.030(a)(1).)

The Court of Appeal has stated that permitting a party to make the same requests in multiple sets of discovery would improperly skirt the strict time limits for moving to compel further responses. (See *Professional Career Colleges, Magna Institute, Inc. v. Superior Court* (1989) 207 Cal.App.3d 490, 494.)

Plaintiff

properly objected to request nos. 98-101, 103-105, 107, 112, and 123 as repeating prior requests. For example, request no. 98 asks: "Please produce any

and all DOCUMENTS CONCERNING any commendations or criticisms of YOUR job performance that YOU received from DEFENDANTS, including but not limited to discipline notices, performance reviews, and bonuses.”

Defendants

previously requested “ALL DOCUMENTS RELATING TO evaluations of YOUR job performance, whether formal OR informal, while YOU were employed by DEFENDANT;” “ALL DOCUMENTS RELATING TO any written warnings OR disciplinary action RELATING TO YOUR job performance while employed by DEFENDANT;” “ALL DOCUMENTS RELATING TO any written warnings OR disciplinary action given to YOU, which occurred outside the scope of YOUR employment with DEFENDANT, while YOU were employed by DEFENDANT;” and “ALL DOCUMENTS RELATING TO any COMMUNICATION between YOU and any other PERSON, RELATED TO YOUR performance as an employee of DEFENDANT.” (Laba Decl., Ex. 2, RFP set 1, Nos. 2-5.) These prior requests would necessarily elicit the same information as sought in request no. 98.

Plaintiff’s objections

to request nos. 98-101, 103-105, 107, 112, and 123 are sustained.

However, Plaintiff’s repetition

objections to request nos. 95, 97, 102, 109-111 are overruled.

While the new requests alleged to be duplicative of prior requests do contain some overlap, Plaintiff does not show those requests are so duplicative as to be improper.

For example, Plaintiff

argues no. 95 improperly duplicates request nos. 1-3 and 64. Request no. 95 demands “[A]ny and all DOCUMENTS that YOU either received from DEFENDANTS or provided to DEFENDANTS regarding YOUR employment with DEFENDANT J. FRANK ASSOCIATES, LLC.” Meanwhile, request nos. 1-3 asked for documents relating to employee handbooks, personnel policies/guidelines/procedures, performance evaluations, and disciplinary actions. Request no. 64 sought “ALL COMMUNICATIONS with DEFENDANT from November 1, 2018 to the present.” While these requests overlap, request no. 95 is broader in scope and seeks all documents regarding employment as opposed to discrete categories of information or communications within a given timeframe.

Overbreadth

and Privacy

Request no. 111 is overbroad and intrudes on Plaintiff's right to privacy. Request no. 111 seeks "any and all DOCUMENTS reflecting all of YOUR work-related and non-

work related travel from November 2018 to present, including but not limited to YOUR social media posts reflecting such travel on Facebook, Instagram, TikTok, and/or Twitter/X." Requesting documents regarding Plaintiff's non-work-related travel in an almost 8-year time span is intrusive and bears little relation to the claims in this case. Defendants argue that "evidence of personal travel—particularly where reflected in social media—may be relevant to assessing Plaintiff's claims regarding her medical condition, alleged emotional distress, physical limitations, and the extent of her alleged injuries." The Court is not convinced. Seeking "any and all documents" related to Plaintiff's personal travel is not narrowly tailored. As just some examples of the overbreadth, as drafted the request seeks receipts from meals and souvenir purchases and gas station receipts if Plaintiff rented a car, none of which have any apparent bearing on the issues in this case.

Plaintiff's objection to request no. 111 based on overbreadth is sustained.

Plaintiff's objections based on overbreadth and privacy are overruled as to request nos. 95, 97, 102, 109-110. These requests seek relevant, discoverable information relating to the claims in this case.

Sanctions

Defendants move for \$3,533 in sanctions against Plaintiff and her counsel for 11.8 hours of work at attorney rates of \$285-\$335 per hour. (Davis Decl., ¶ 27.) "[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2031.310(h).)

Plaintiff's opposition was only partially successful. While Plaintiff acted with substantial justification in objecting to some of the requests, Plaintiff did not serve 15 supplemental

responses until one day before her opposition brief was due, and needs to provide code-compliant responses for 16 responses, including some of which were only recently supplemented. The Court exercises its discretion to award 75% of the requested sanctions, or \$2,650.

Disposition

Defendants

J. Frank Associates, LLC and Eric Brielmann's motion to compel Plaintiff to serve further responses to requests for production is granted in part as to request nos. 95, 97, 102, 106, 109-110, 113, 115, 117-122, and 124-125. Plaintiff is ordered to serve a further verified response to these requests within 21 days.

Plaintiff

Caroline Lipe and her counsel of record are hereby ordered to pay, jointly and severally, Defendants J. Frank Associates, LLC and Eric Brielmann \$2,650 in sanctions within 21 days.